

17/11/21

W Edmiston
R. R. Taber
Eugene Wekeser

17/11/21
17/11/21
17/11/21

supplied in electro

“electronic form”	has the meaning given in the 2006 Act;
“fully paid”	in relation to a share, means that the nominal value and any premium to be paid to the Company in respect of that share have been paid to the Company;
“hard copy form”	has the meaning given in section 1168 of the 2006 Act;
“instrument”	means a document in hard copy form;
“ordinary resolution”	has the meaning given in section 282 of the 2006 Act;
“Ordinary Shares”	means Ordinary shares in the capital of the Company;
“Ordinary Shareholders”	means the holders of Ordinary Shares from time to time;
“paid”	means paid or credited as paid;
“participate”	in relation to a directors’ meeting, has the meaning given in article 10;
“proxy notice”	has the meaning given in article 49;
“Redeemable Preference Shares”	means the non-voting Redeemable Preference Shares of £1.00 each in the capital of the Company;
“Redeemable Preference Shareholders”	means the holders of Redeemable Preference Shares from time to time and “Redeemable Preference Shareholder” shall be construed accordingly;
“Shareholder”	means a person who is entered in the register of members as the holder of the relevant shares;
“Shares”	means shares in the Company of whatever class;
“special resolution”	has the meaning given in section 283 of the 2006 Act;
“subsidiary”	has the meaning given in section 1159 of the 2006 Act;
“transmittee”	means a person entitled to a share by reason of the death or bankruptcy of a shareholder or otherwise by operation of law; and
“writing”	means the representation or reproduction of words, symbols or other information in a visible form by any method or

combination of methods, whether sent or supplied in electronic form or otherwise.

- 1.2 Unless the context otherwise requires, other words or expressions contained in these Articles bear the same meaning as in the 2006 Act as in force on the date when these Articles become binding on the Company.

2. Liability of members

- 2.1 The liability of the Shareholders is limited to the amount, if any, unpaid on the Shares held by them.

PART 2

DIRECTORS

DIRECTORS' POWERS AND RESPONSIBILITIES

3. Directors' general authority

- 3.1 Subject to the Articles, the Directors are responsible for the management of the Company's business, for which purpose they may exercise all the powers of the Company.

4. Ordinary Shareholders' reserve power

- 4.1 The Ordinary Shareholders may, by general resolution direct the Directors to take, or refrain from taking, specified action.
- 4.2 No such resolution invalidates anything which the Directors may have done before the passing of the resolution.

5. Directors may delegate

- 5.1 Subject to the Articles, the Directors may delegate any of the powers which are conferred on them under the Articles—
- 5.1.1 to such person or committee;
 - 5.1.2 by such means (including by power of attorney)
 - 5.1.3 to such an extent;
 - 5.1.4 in relation to such matters or territories; and
 - 5.1.5 on such terms and conditions;
as they think fit.

5.2 If the Directors so specify, any such delegation may authorise further delegation of the Directors' powers by any person to whom they are delegated.

5.3 The Directors may revoke any delegation in whole or part, or alter its terms and conditions.

6. Committees

6.1 Committees to which the Directors delegate any of their powers must follow procedures which are based as far as they are applicable on those provisions of the Articles which govern the taking of decisions by Directors.

6.2 The Directors may make rules of procedure for all or any committees, which prevail over rules derived from the Articles if they are not consistent with them.

DECISION-MAKING BY DIRECTORS

7. Directors to take decisions collectively

7.1 The general rule about decision-making by Directors is that any decision of the Directors must be either a majority decision at a meeting or by telephone or other means of oral communication. A decision in writing may be taken in accordance with Article 8.

7.2 If—

7.2.1 the Company only has one Director, and

7.2.2 no provision of the Articles requires it to have more than one Director, the general rule does not apply, and the Director may take decisions without regard to any of the provisions of the Articles relating to Directors' decision-making.

8. Written decisions

8.1 A decision of the directors may take the form of a resolution in writing, copies of which have been signed by each eligible Director or to which each eligible Director has otherwise indicated agreement in writing.

8.2 References in this article to eligible Directors are to Directors who would have been entitled to vote on the matter had it been proposed as a resolution at a Directors' meeting.

- 8.3 A decision may not be taken in accordance with this article if the eligible Directors would not have formed a quorum at such a meeting.

9. Calling a directors' meeting

- 9.1 Any Director may call a Directors' meeting by giving notice of the meeting to the Directors or by authorising the company secretary (if any) to give such notice.

- 9.2 Notice of any Directors' meeting must indicate—

- 9.2.1 its proposed date and time;
- 9.2.2 where it is to take place; and
- 9.2.3 if it is anticipated that Directors participating in the meeting will not be in the same place, how it is proposed that they should communicate with each other during the meeting.

- 9.3 Notice of a Directors' meeting must be given to each Director, but need not be in writing.

- 9.4 Notice of a Directors' meeting need not be given to Directors who waive their entitlement to notice of that meeting, by giving notice to that effect to the company not more than 7 days after the date on which the meeting is held. Where such notice is given after the meeting has been held, that does not affect the validity of the meeting, or of any business conducted at it.

10. Participation in directors' meetings

- 10.1 Subject to the Articles, Directors participate in a Directors' meeting, or part of a Directors' meeting, when—

- 10.1.1 the meeting has been called and takes place in accordance with the Articles, and
- 10.1.2 they can each communicate to the others any information or opinions they have on any particular item of the business of the meeting.

- 10.2 In determining whether Directors are participating in a Directors' meeting, it is irrelevant where any Director is or how they communicate with each other.

- 10.3 If all the Directors participating in a meeting are not in the same place, they may decide that the meeting is to be treated as taking place wherever any of them is.

11. Quorum for Directors' meetings

- 11.1 At a Directors' meeting, unless a quorum is participating, no proposal is to be voted on, except a proposal to call another meeting.
- 11.2 The quorum for Directors' meetings may be fixed from time to time by a decision of the Directors, but it must never be less than a majority of the Directors, and unless otherwise fixed it is a majority of the Directors.
- 11.3 If the total number of Directors for the time being is less than the quorum required, the Directors must not take any decision other than a decision—
 - 11.3.1 to appoint further directors, or
 - 11.3.2 to call a general meeting so as to enable the Shareholders to appoint further Directors.

12. Chairing of Directors' meetings

- 12.1 The Directors may appoint a Director to chair their meetings.
- 12.2 The person so appointed for the time being is known as the chairman.
- 12.3 The Directors may terminate the chairman's appointment at any time.
- 12.4 If the chairman is not participating in a Directors' meeting within ten minutes of the time at which it was to start, the participating Directors must appoint one of themselves to chair it.

13. Casting vote

- 13.1 For the avoidance of doubt, the chairman or other director chairing the meeting shall have no casting vote.

14. Conflicts of interest

- 14.1 If a proposed decision of the Directors is concerned with an actual or proposed transaction or arrangement with the Company in which a Director is interested, that Director is not to be counted as participating in the decision-making process for quorum or voting purposes.
- 14.2 But if paragraph 14.3 applies, a Director who is interested in an actual or proposed transaction or arrangement with the Company is to be counted as participating in the decision-making process for quorum and voting purposes.

14.3 This paragraph applies when—

- 14.3.1 the Company by resolution passed by the Ordinary Shareholders disapplies the provision of the Articles which would otherwise prevent a Director from being counted as participating in the decision-making process;
- 14.3.2 the director's interest cannot reasonably be regarded as likely to give rise to a conflict of interest; or
- 14.3.3 the Director's conflict of interest arises from a permitted cause.

14.4 For the purposes of this Article, the following are permitted causes—

- 14.4.1 a guarantee given, or to be given, by or to a Director in respect of an obligation incurred by or on behalf of the Company or any of its subsidiaries;
- 14.4.2 subscription, or an agreement to subscribe, for shares or other securities of the Company or any of its subsidiaries, or to underwrite, sub-underwrite, or guarantee subscription for any such shares or securities; and
- 14.4.3 arrangements pursuant to which benefits are made available to employees and directors or former employees and directors of the Company or any of its subsidiaries which do not provide special benefits for directors or former directors.

14.5 For the purposes of this article, references to proposed decisions and decision-making processes include any Directors' meeting or part of a Directors' meeting.

14.6 Subject to paragraph 14.7, if a question arises at a meeting of Directors or of a committee of Directors as to the right of a Director to participate in the meeting (or part of the meeting) for voting or quorum purposes, the question may, before the conclusion of the meeting, be referred to the chairman whose ruling in relation to any Director other than the chairman is to be final and conclusive.

14.7 If any question as to the right to participate in the meeting (or part of the meeting) should arise in respect of the chairman, the question is to be decided by a decision of the Directors at that meeting, for which purpose the chairman is not to be counted as participating in the meeting (or that part of the meeting) for voting or quorum purposes.

15. **Records of decisions to be kept**

The Directors must ensure that the Company keeps a record, in writing, for at least 10 years from the date of the decision recorded, of every unanimous or majority decision taken by the Directors.

16. Directors' discretion to make further rules

Subject to the Articles, the Directors may make any rule which they think fit about how they take decisions, and about how such rules are to be recorded or communicated to Directors.

APPOINTMENT OF DIRECTORS

17. Methods of appointing directors

17.1 Any person who is willing to act as a Director, and is permitted by law to do so, may be appointed to be a Director—

17.1.1 by the Ordinary Shareholders, or

17.1.2 by a decision of the Directors.

17.2 In any case where, as a result of death, the Company has no Shareholders and no Directors, the personal representatives of the last Shareholder to have died have the right, by notice in writing, to appoint a person to be a Director.

17.3 For the purposes of paragraph 17.2, where 2 or more Shareholders die in circumstances rendering it uncertain who was the last to die, a younger Shareholder is deemed to have survived an older Shareholder.

18. Termination of Director's appointment

18.1 A person ceases to be a Director as soon as—

18.1.1 that person ceases to be a Director by virtue of any provision of the Companies Act 2006 or is prohibited from being a director by law;

18.1.2 a bankruptcy order is made against that person;

18.1.3 a composition is made with that person's creditors generally in satisfaction of that person's debts;

18.1.4 a registered medical practitioner who is treating that person gives a written opinion to the company stating that that person has become physically or mentally incapable of acting as a director and may remain so for more than three months;

18.1.5 by reason of that person's mental health, a court makes an order which wholly or partly prevents that person from personally exercising any powers or rights which that person would otherwise have;

18.1.6 notification is received by the Company from the Director that the Director is resigning from office, and such resignation has taken effect in accordance with its terms.

18.2 The Ordinary Shareholders may terminate a director's appointment at any time on giving not less than one month's written notice.

19. Directors' remuneration

19.1 Directors may undertake any services for the Company that the Directors decide.

19.2 Directors are entitled to such remuneration as the directors determine—

19.2.1 for their services to the company as Directors, and

19.2.2 for any other service which they undertake for the Company.

19.3 Subject to the Articles, a Director's remuneration may—

19.3.1 take any form, and

19.3.2 include any arrangements in connection with the payment of a pension, allowance or gratuity, or any death, sickness or disability benefits, to or in respect of that Director.

19.4 Unless the Directors decide otherwise, Directors' remuneration accrues from day to day.

19.5 Unless the Directors decide otherwise, Directors are not accountable to the Company for any remuneration which they receive as Directors or other officers or employees of the Company's subsidiaries or of any other body corporate in which the company is interested.

20. Directors' expenses

20.1 The Company may pay any reasonable expenses which the Directors properly incur in connection with their attendance at—

20.1.1 meetings of Directors or committees of Directors;

20.1.2 general meetings; or

20.1.3 separate meetings of the holders of any class of shares or of debentures of the Company, or otherwise in connection with the exercise of their powers and the discharge of their responsibilities in relation to the Company.

PART 3
SHARES AND DISTRIBUTIONS OF
SHARES

21. All shares to be fully paid up

- 21.1 No share is to be issued for less than the aggregate of its nominal value and any premium to be paid to the Company in consideration for its issue.

22. Powers to issue different classes of share

- 22.1 Subject to the Articles, but without prejudice to the rights attached to any existing share, the Company may issue shares with such rights or restrictions as may be determined by the Ordinary Shareholders.
- 22.2 The Company may issue shares which are to be redeemed, or are liable to be redeemed at the option of the company or the holder, and the directors may determine the terms, conditions and manner of redemption of any such shares.
- 22.3 At the date of adoption of these Articles, the Company shall have Ordinary Shares and Redeemable Preference Shares having the rights set out these Articles

23. Class Voting Rights – Ordinary Shares

- 23.1 Each of the Ordinary Shares shall carry one vote and the Ordinary Shareholders shall have the rights to vote as set out in these Articles.

24. Class Voting Rights – Redeemable Preference Shares

- 24.1 The Redeemable Preference Shares do not carry a right to vote and accordingly, Redeemable Preference Shareholders shall have no right to vote at a general meeting of the members of the Company. The Redeemable Preference Shareholders shall each be entitled to attend meetings of the Redeemable Preference Shareholders and general meetings of the Shareholders but shall not be entitled to attend meetings of the Ordinary Shareholders.

25. Allotment of Shares

- 25.1 Shares may not be allotted and issued without the prior consent of all of the Ordinary Shareholders.

25.2 Except with the prior written consent of all of the Ordinary Shareholders, any Shares to be issued following the consent provided for in Article 25.1:-

25.2.1 shall be only be issued to a shareholder holding shares of the same class;

25.2.2 shall, as between the holders of shares of a class, be allotted in proportion to their then existing holdings of shares of that class or in such other proportions between them as all the members holding shares of that class agree in writing.

25.3 The pre-emption provisions of Part 17 of the 2006 Act shall not apply to any allotment of Shares.

26. Share certificates

26.1 The Company must issue each shareholder, free of charge, with one or more certificates in respect of the shares which that shareholder holds.

26.2 Every certificate must specify—

26.2.1 in respect of how many shares, of what class, it is issued;

26.2.2 the nominal value of those shares;

26.2.3 that the shares are fully paid; and

26.2.4 any distinguishing numbers assigned to them.

26.3 No certificate may be issued in respect of shares of more than one class.

26.4 If more than one person holds a share, only one certificate may be issued in respect of it.

26.5 Certificates must be executed in accordance with the Companies Acts.

27. Replacement share certificates

27.1 If a certificate issued in respect of a shareholder's shares is—

27.1.1 damaged or defaced, or

27.1.2 said to be lost, stolen or destroyed, that shareholder is entitled to be issued with a replacement certificate in respect of the same shares.

27.2 A shareholder exercising the right to be issued with such a replacement certificate—

- 27.2.1 may at the same time exercise the right to be issued with a single certificate or separate certificates;
- 27.2.2 must return the certificate which is to be replaced to the company if it is damaged or defaced; and
- 27.2.3 must comply with such conditions as to evidence, indemnity and the payment of a reasonable fee as the directors decide.

28. Share transfers

28.1 Permitted Transfers

- 28.1.1 An Ordinary Shareholder may transfer any Shares held by him where such transfer is approved by the Ordinary Shareholders.
- 28.1.2 a Redeemable Preference Shareholder may not transfer any Redeemable Preference Shares held by him except where such a transfer is approved by the Ordinary Shareholders;
- 28.1.3 the Directors may not refuse to register a transfer of Shares in accordance with Article 28.1.

28.3 Transfer Notices

- 28.3.1 Any Shareholder (the "Transferor") proposing to transfer any Shares must give prior written notice (the "Transfer Notice") to the Company specifying the proposed transferee (the "Transferee") and the number of Shares proposed to be transferred (the "Sale Shares").
- 28.3.2 Transfer Notices constitute the Company as the Transferor's agent for the sale of the Sale Shares in one or more lots at the discretion of the Directors at the Sale Price (defined below).

28.4 Sale Price

- 28.4.1 Ordinary Shares – the Sale Price in respect of any Ordinary Shares shall be a price per share as equals the total value of the Company (as shown in the accounts as at the date the Transfer Notice is given or is deemed to have been given) divided by the number of Ordinary Shares in issue as at the date the Transfer Notice is given or is deemed to have been given. For the avoidance of doubt, there shall not be any reduction in value ascribed to the Sale Shares by virtue of the fact that they represent a minority interest;

- 28.4.2 Redeemable Preference Shares - in the event of the transfer by a Redeemable Preference Shareholder, the Sale Price in respect of any Redeemable Preference Shares shall be £1.00 per share.
- 28.5 A Transfer Notice may contain a total transfer condition ("Total Transfer Condition") whereby unless all of the Sale Shares are agreed to be sold, the member may refuse to sell the Sale Shares which are agreed to be sold. A Total transfer Condition shall be binding on the Company.
- 28.6 A Transfer Notice shall be irrevocable except with the consent of the Directors.
- 28.7 Upon the Sale Price being fixed, the Sale Shares shall be dealt with in the following manner:-
- 28.7.1 the Sale Shares shall, be offered to the Ordinary Shareholders (other than the Transferor) as nearly as may be in proportion to the number of shares held by them respectively;
- 28.7.2 any offer under sub-article 28.7.1 shall be in writing (and shall intimate the Sale Price as fixed as provided in this article 28) and if and insofar as accepted within 14 days of it being served by notice in writing to the Directors stating the number of the Sale Shares the Shareholder making such acceptance wishes to take (and if not so accepted shall be deemed to have been refused). For the purpose of this sub-article an offer shall be deemed to be accepted on the day on which the acceptance is received by the Company.
- 28.7.3 if and to the extent to which any offer is accepted, the Transferor shall be bound upon demand to transfer such of the Sale Shares as are accepted and the Shareholder accepted the offer shall be bound upon demand to pay for the Sale Shares accepted at the Sale Price fixed as aforesaid.
- 28.8 Where the Sale Shares have been offered pursuant to sub-article 28.7.1 and not all of the Sale Shares have been accepted then the remainder of the Sale Shares shall offered in the proportions (as nearly as may be and without increasing the number sold to any Shareholder beyond the number applied for by him) to their existing shareholdings to the persons who had within the time prescribed by sub-article 28.7.2 accepted all the Sale Shares offered to them. Such further offer shall be repeated until such time as either (i) all the Sale Shares have been accepted; or (ii) each Shareholder has or is deemed to have declined to accept any further Sale Shares. If

an to the extent to which such further offer or offers are accepted, the Transferor shall be bound upon demand to transfer the Sale Shares accepted and the Shareholder accepting such further offer or offers shall be bound on demand to pay for the Sale Shares accepted at the Sale Price fixed as aforesaid. If any Sale Shares have not been accepted following the final further offer then the Transferor shall be entitled, for a period of 30 days after the final further offer, to transfer the remaining Sale Shares to the Transferee specified in the Transfer Notice but in the case of a sale, at not less than the lower of the price fixed as aforesaid, and the directors shall register such transfer(s);

- 28.9 If the Transferor shall fail to sign and deliver a valid transfer of any of the Sale Shares which he/she has become bound to sell pursuant to the foregoing provisions, the Directors shall appoint some other person who by virtue of such appointment shall be deemed to have been appointed attorney of the Transferor with full power to complete, execute and deliver in the name and on behalf of the Transferor, transfers of the Sale Shares to be sold by him pursuant to these provisions. On payment of the price to the Company such person shall be deemed to have obtained a good discharge for such payment and on execution and delivery of the transfer any such person shall be entitled to insist upon his name being entered in the register of members as a holder by virtue of the transfer of the Sale Shares so transferred. The Company shall forthwith pay the price into a separate bank account in the Company's name and shall hold such price in trust for the Transferor. The Directors shall register any transfer granted in pursuance of these powers notwithstanding that the certificate or certificates for the Sale Shares may not be produced with such transfer or transfers and after the purchasing member(s) has/have been registered in exercise of these powers, the validity of the proceedings shall not be questioned by any person;
- 28.10 Any purported transfer of shares by any member not preceded by a Transfer Notice given in accordance with the foregoing provisions shall be of no effect unless the other members shall have validly waived their rights in writing, and no such purported transfer shall be registered by the directors.

29. and 30 **Not Used**

31. **Share Transfers – General**

- 31.1 Shares may be transferred by means of an instrument of transfer in any usual form or any other form approved by the directors, which is executed by or on behalf of the transferor.

- 31.2 No fee may be charged for registering any instrument of transfer or other document relating to or affecting the title to any share.
- 31.3 The company may retain any instrument of transfer which is registered.
- 31.4 The transferor remains the holder of a share until the transferee's name is entered in the register of members as holder of it.
- 31.5 The directors may not refuse to register the transfer of a Share in accordance with the terms of the Articles unless they reasonably consider that the proposed transfer may be fraudulent.

32. Redemption of Shares

- 32.1 The Redeemable Preference Shares may be redeemed by the Company at any time on giving prior written notice (the "Redemption Notice") to the Redeemable Preference Shareholder specifying the number of Redeemable Preference Shares proposed to be redeemed (the "Redemption Shares"). The Preference Shares may be redeemed in such amounts and at such dates as the Ordinary Shareholders may determine from time to time.
- 32.2 A Redemption Notice constitutes the Company as the Redeemable Preference Shareholder's agent for the redemption of Redemption Shares in one or more lots at the discretion of the Directors at the price of £1.00 per share.
- 32.3 For the avoidance of doubt, no buy back of Ordinary Shares shall be competent while there are Redeemable Preference Shares in issue.

33 Dividends and Other Distributions

- 33.1 The Company will pay to the Ordinary Shareholders a dividend of an amount per Ordinary Share as approved by the Ordinary Shareholders; such dividend to be payable as determined by the Ordinary Shareholders and paid by reference to each shareholder's holding of shares on the date of the resolution or decision to declare or pay it.
- 33.2 The Redeemable Preference Shares carry no rights to a dividend or income.

34. Payment of Dividends and other distributions

34.1 Where a dividend or other sum which is a distribution is payable in respect of a share, it shall be paid by such means of payment as the directors agree with the distribution recipient either in writing or by such other means as the directors decide.

34.2 In the articles, "the distribution recipient" means, in respect of a share in respect of which a dividend or other sum is payable—

- (a) the holder of the share; or
- (b) if the share has two or more joint holders, whichever of them is named first in the register of members.

35. No interest on distributions

The company may not pay interest on any dividend or other sum payable in respect of a share unless otherwise provided by—

- (a) the terms on which the share was issued, or
- (b) the provisions of another agreement between the holder of that share and the company.

36. Unclaimed distributions

36.1 All dividends or other sums which are—

- (a) payable in respect of shares, and
- (b) unclaimed after having been declared or become payable, may be invested or otherwise made use of by the directors for the benefit of the company until claimed.

36.2 The payment of any such dividend or other sum into a separate account does not make the company a trustee in respect of it.

36.3 If—

- (a) twelve years have passed from the date on which a dividend or other sum became due for payment, and

- (b) the distribution recipient has not claimed it, the distribution recipient is no longer entitled to that dividend or other sum and it ceases to remain owing by the company.

37. Non-cash distributions

37.1 Subject to the terms of issue of the share in question, the company may, by ordinary resolution on the recommendation of the directors, decide to pay all or part of a dividend or other distribution payable in respect of a share by transferring non-cash assets of equivalent value (including, without limitation, shares or other securities in any company).

37.2 For the purposes of paying a non-cash distribution, the directors may make whatever arrangements they think fit, including, where any difficulty arises regarding the distribution—

- (a) fixing the value of any assets;
- (b) paying cash to any distribution recipient on the basis of that value in order to adjust the rights of recipients; and
- (c) vesting any assets in trustees.

38. Waiver of distributions

Distribution recipients may waive their entitlement to a dividend or other distribution payable in respect of a share by giving the company notice in writing to that effect, but if the share has more than one holder, the notice is not effective unless it is expressed to be given, and signed, by all the holders or persons otherwise entitled to the share.

39. Winding Up/Liquidation

39.1 On the return of assets on liquidation, winding up, capital reduction or otherwise, the assets of the Company remaining after the payment of its liabilities shall be applied as follows:-

- 39.1.1 first, in paying the Redeemable Preference Shareholders a sum equal to £1.00 per Redeemable Preference Share held by them; and

39.1.2 thereafter, the balance of the assets shall be distributed amongst the Ordinary Shareholders in proportion to the Ordinary Shares held by them respectively.

CAPITALISATION OF PROFITS

40. **Authority to capitalise and appropriation of capitalised sums**

40.1 Subject to the articles, the directors may, if they are so authorised by an ordinary resolution—

- (a) decide to capitalise any profits of the company (whether or not they are available for distribution) which are not required for paying a preferential dividend, or any sum standing to the credit of the company's share premium account or capital redemption reserve; and
- (b) appropriate any sum which they so decide to capitalise (a "capitalised sum") to the persons who would have been entitled to it if it were distributed by way of dividend (the "persons entitled") and in the same proportions.

40.2 Capitalised sums must be applied—

- (a) on behalf of the persons entitled, and
- (b) in the same proportions as a dividend would have been distributed to them.

40.3 Any capitalised sum may be applied in paying up new shares of a nominal amount equal to the capitalised sum which are then allotted credited as fully paid to the persons entitled or as they may direct.

40.4 A capitalised sum which was appropriated from profits available for distribution may be applied in paying up new debentures of the company which are then allotted credited as fully paid to the persons entitled or as they may direct.

40.5 Subject to the articles the directors may—

- (a) apply capitalised sums in accordance with paragraphs (3) and (4) partly in one way and partly in another;

- (b) make such arrangements as they think fit to deal with shares or debentures becoming distributable in fractions under this article (including the issuing of fractional certificates or the making of cash payments); and
- (c) authorise any person to enter into an agreement with the company on behalf of all the persons entitled which is binding on them in respect of the allotment of shares and debentures to them under this article.

PART 4
DECISION-MAKING BY SHAREHOLDERS
ORGANISATION OF GENERAL MEETINGS

41. Attendance and speaking at general meetings

- 41.1 A person is able to exercise the right to speak at a general meeting when that person is in a position to communicate to all those attending the meeting, during the meeting, any information or opinions which that person has on the business of the meeting. The Redeemable Preference Shareholders shall be entitled to attend meetings of the Redeemable Preference Shareholders and general meetings of the Shareholders but shall not be entitled to attend meetings of the Ordinary Shareholders.
- 41.2 A person is able to exercise the right to vote at a general meeting when—
 - (a) that person is able to vote, during the meeting, on resolutions put to the vote at the meeting, and
 - (b) that person's vote can be taken into account in determining whether or not such resolutions are passed at the same time as the votes of all the other persons attending the meeting.
- 41.3 The directors may make whatever arrangements they consider appropriate to enable those attending a general meeting to exercise their rights to speak or vote at it.
- 41.4 In determining attendance at a general meeting, it is immaterial whether any two or more members attending it are in the same place as each other.
- 41.5 Two or more persons who are not in the same place as each other attend a general meeting if their circumstances are such that if they have (or were to have) rights to speak and vote at that meeting, they are (or would be) able to exercise them.

42. Quorum for general meetings

No business other than the appointment of the chairman of the meeting is to be transacted at a general meeting if the persons attending it do not constitute a quorum.

43. Chairing general meetings

43.1 If the directors have appointed a chairman, the chairman shall chair general meetings if present and willing to do so.

43.2 If the directors have not appointed a chairman, or if the chairman is unwilling to chair the meeting or is not present within ten minutes of the time at which a meeting was due to start—

43.2.1 the directors present, or

43.2.2 (if no directors are present), the meeting, must appoint a director or shareholder to chair the meeting, and the appointment of the chairman of the meeting must be the first business of the meeting.

43.3 The person chairing a meeting in accordance with this article is referred to as “the chairman of the meeting”.

44. Attendance and speaking by directors and non-shareholders

44.1 Directors may attend and speak at general meetings, whether or not they are shareholders.

44.2 The chairman of the meeting may permit other persons who are not—

(a) shareholders of the company, or

(b) otherwise entitled to exercise the rights of shareholders in relation to general meetings, to attend and speak at a general meeting.

45. Adjournment

45.1 If the persons attending a general meeting within half an hour of the time at which the meeting was due to start do not constitute a quorum, or if during a meeting a quorum ceases to be present, the chairman of the meeting must adjourn it.

- 45.2 The chairman of the meeting may adjourn a general meeting at which a quorum is present if—
- 45.2.1 the meeting consents to an adjournment, or
- 45.2.2 it appears to the chairman of the meeting that an adjournment is necessary to protect the safety of any person attending the meeting or ensure that the business of the meeting is conducted in an orderly manner.
- 45.3 The chairman of the meeting must adjourn a general meeting if directed to do so by the meeting.
- 45.4 When adjourning a general meeting, the chairman of the meeting must—
- 45.4.1 either specify the time and place to which it is adjourned or state that it is to continue at a time and place to be fixed by the directors, and
- 45.4.2 have regard to any directions as to the time and place of any adjournment which have been given by the meeting.
- 45.5 If the continuation of an adjourned meeting is to take place more than 14 days after it was adjourned, the company must give at least 7 clear days' notice of it (that is, excluding the day of the adjourned meeting and the day on which the notice is given)—
- 45.5.1 to the same persons to whom notice of the company's general meetings is required to be given, and
- 45.5.2 containing the same information which such notice is required to contain.
- 45.6 No business may be transacted at an adjourned general meeting which could not properly have been transacted at the meeting if the adjournment had not taken place.

VOTING AT GENERAL MEETINGS

46. **Voting: general**

A resolution put to the vote of a general meeting must be decided on a show of hands unless a poll is duly demanded in accordance with the articles.

47. Errors and disputes

47.1 No objection may be raised to the qualification of any person voting at a general meeting except at the meeting or adjourned meeting at which the vote objected to is tendered, and every vote not disallowed at the meeting is valid.

47.2 Any such objection must be referred to the chairman of the meeting, whose decision is final.

48. Poll votes

48.1 A poll on a resolution may be demanded—

48.1.1 in advance of the general meeting where it is to be put to the vote, or

48.1.2 at a general meeting, either before a show of hands on that resolution or immediately after the result of a show of hands on that resolution is declared.

48.2 A poll may be demanded by—

48.2.1 the chairman of the meeting;

48.2.2 the directors;

48.2.3 two or more persons having the right to vote on the resolution; or

48.2.4 a person or persons representing not less than one tenth of the total voting rights of all the shareholders having the right to vote on the resolution.

48.3 A demand for a poll may be withdrawn if—

48.3.1 the poll has not yet been taken, and

48.3.2 the chairman of the meeting consents to the withdrawal.

48.4 Polls must be taken immediately and in such manner as the chairman of the meeting directs.

49. Content of proxy notices

49.1 Proxies may only validly be appointed by a notice in writing (a "proxy notice") which—

49.1.1 states the name and address of the shareholder appointing the proxy;

49.1.2 identifies the person appointed to be that shareholder's proxy and the general meeting in relation to which that person is appointed;

49.1.3 is signed by or on behalf of the shareholder appointing the proxy, or is authenticated in such manner as the directors may determine; and

49.1.4 is delivered to the company in accordance with the articles and any instructions contained in the notice of the general meeting to which they relate.

49.2 The company may require proxy notices to be delivered in a particular form, and may specify different forms for different purposes.

49.3 Proxy notices may specify how the proxy appointed under them is to vote (or that the proxy is to abstain from voting) on one or more resolutions.

49.4 Unless a proxy notice indicates otherwise, it must be treated as—

49.4.1 allowing the person appointed under it as a proxy discretion as to how to vote on any ancillary or procedural resolutions put to the meeting, and

49.4.2 appointing that person as a proxy in relation to any adjournment of the general meeting to which it relates as well as the meeting itself.

50. **Delivery of proxy notices**

50.1 A person who is entitled to attend, speak or vote (either on a show of hands or on a poll) at a general meeting remains so entitled in respect of that meeting or any adjournment of it, even though a valid proxy notice has been delivered to the company by or on behalf of that person.

50.2 An appointment under a proxy notice may be revoked by delivering to the company a notice in writing given by or on behalf of the person by whom or on whose behalf the proxy notice was given.

50.3 A notice revoking a proxy appointment only takes effect if it is delivered before the start of the meeting or adjourned meeting to which it relates.

50.4 If a proxy notice is not executed by the person appointing the proxy, it must be accompanied by written evidence of the authority of the person who executed it to execute it on the appointor's behalf.

51. Amendments to resolutions

51.1 An ordinary resolution to be proposed at a general meeting may be amended by ordinary resolution if—

51.1.1 notice of the proposed amendment is given to the company in writing by a person entitled to vote at the general meeting at which it is to be proposed not less than 48 hours before the meeting is to take place (or such later time as the chairman of the meeting may determine), and

51.1.2 the proposed amendment does not, in the reasonable opinion of the chairman of the meeting, materially alter the scope of the resolution.

51.2 A special resolution to be proposed at a general meeting may be amended by ordinary resolution, if—

51.2.1 the chairman of the meeting proposes the amendment at the general meeting at which the resolution is to be proposed, and

51.2.2 the amendment does not go beyond what is necessary to correct a grammatical or other non-substantive error in the resolution.

51.3 If the chairman of the meeting, acting in good faith, wrongly decides that an amendment to a resolution is out of order, the chairman's error does not invalidate the vote on that resolution.

PART 5

ADMINISTRATIVE ARRANGEMENTS

52. Means of communication to be used

52.1 Subject to the articles, anything sent or supplied by or to the company under the articles may be sent or supplied in any way in which the Companies Act 2006 provides for documents or information which are authorised or required by any provision of that Act to be sent or supplied by or to the company.

52.2 Subject to the articles, any notice or document to be sent or supplied to a director in connection with the taking of decisions by directors may also be sent or supplied by the means by which that director has asked to be sent or supplied with such notices or documents for the time being.

52.3 A director may agree with the company that notices or documents sent to that director in a particular way are to be deemed to have been received within a specified time of their being sent, and for the specified time to be less than 48 hours.

53. No right to inspect accounts and other records

53.1 Except as provided by law or authorised by the directors or an ordinary resolution of the company, no person is entitled to inspect any of the company's accounting or other records or documents merely by virtue of being a shareholder.

54. Provision for employees on cessation of business

The directors may decide to make provision for the benefit of persons employed or formerly employed by the company or any of its subsidiaries (other than a director or former director or shadow director) in connection with the cessation or transfer to any person of the whole or part of the undertaking of the company or that subsidiary.

DIRECTORS' INDEMNITY AND INSURANCE

55. Indemnity

55.1 Subject to paragraph 53.2, a relevant director of the company or an associated company may be indemnified out of the company's assets against—

55.1.1 any liability incurred by that director in connection with any negligence, default, breach of duty or breach of trust in relation to the company or an associated company,

55.1.2 any liability incurred by that director in connection with the activities of the company or an associated company in its capacity as a trustee of an occupational pension scheme (as defined in section 235(6) of the Companies Act 2006),

55.1.3 any other liability incurred by that director as an officer of the company or an associated company.

55.2 This article does not authorise any indemnity which would be prohibited or rendered void by any provision of the Companies Acts or by any other provision of law.

55.3 In this article—

55.3.1 companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate, and

55.3.2 a “relevant director” means any director or former director of the company or an associated company.

56. Insurance

56.1 The directors may decide to purchase and maintain insurance, at the expense of the company, for the benefit of any relevant director in respect of any relevant loss.

56.2 In this article—

56.2.1 a “relevant director” means any director or former director of the company or an associated company,

56.2.2 a “relevant loss” means any loss or liability which has been or may be incurred by a relevant director in connection with that director’s duties or powers in relation to the company, any associated company or any pension fund or employees’ share scheme of the company or associated company, and

56.2.3 companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate.